



Notification Waiver Determination

GenusPlus Group – MPC Kinetic

Acquisition	GenusPlus Group Limited (Genus) applied for a notification waiver in respect of its proposed acquisition of 100% of the issued share capital in MPC Kinetic Holdings Pty Ltd (MPK) through a Share Purchase Agreement, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	9 June 2026

Parties to the Acquisition	The acquirer, Genus, is a supplier of power and communications infrastructure services. Through its infrastructure division, Genus designs, builds and maintains high-voltage transmission and distribution networks, substations, primary customer connections and rail systems. Through its energy and engineering division, it offers engineering design, and procurement and construction solutions for electrical balance of plant (EBoP) services to communications and energy assets, with a focus on electrical systems such as Battery Energy Storage Systems (BESS) and grid integration. Finally, through its services division, it constructs and maintains fixed and wireless communication networks (including nbn fibre and Telstra contracts), provides asset management and upgrade services for power utilities, delivers vegetation management for powerline corridors, and operates digital workforce management platforms. The target, MPK, provides specialised infrastructure and maintenance services to the energy and resources sectors in Australia and New Zealand. It installs gas gathering systems, supplies civil balance of plant (CBoP) construction for onshore wind farms, civil construction for BESS and mining civils. It also supplies down-well maintenance and production supporting service lines - workover emissions reduction technology, integrity monitoring, well intervention services and well servicing.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

	a. there is no horizontal overlap in the supply of CBoP services in Australia b. there is limited horizontal overlap in the supply of EBoP services in Australia c. while there may be a non-horizontal relationship between the products and services supplied by Genus and MPK, there are alternative suppliers of these products and services in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act